

**ENS AFRICA
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Your Reference

Ellis Shilengudwa Incorporated

Our Reference

MAT 25912

Windhoek

1st Floor, The Steps Building
c/o Grove & Chasie Street
Kleine Kuppe, PO Box 3300

Windhoek, Namibia

T: +264 61 242 224

F: +264 61 242 226

E: info@esi.dlapiperafrica.com

www.dlapiperafrica.com

Oshakati

Unit F007

The Palms Office Complex

Oshakati, Namibia

T: +264 81 686 3645

E: conveyancing.north@esi.dlapiperafrica.com

VIA EMAIL

30 April 2026

Dear Mr Visser

Case: TLC SA Transportation and Logistic Consulting v Imex Logistics (Pty) Ltd & Another

Case No.: HC-MD-CIV-MOT-GEN-2026/00200

Subject: Rule 59 Security for Costs – No Answering Affidavit Pending Security

1. We refer to the above matter and specifically to our Notice dated 28 April 2026 delivered in terms of High Court Rule 59(1), whereby our clients (the First and Second Respondents) demanded security for costs from your client (the Applicant) in the amount of N\$500,000.00, for the reasons set out in that Notice.
2. Kindly take notice that until such time as the demanded security for costs is furnished by your client, our clients will not file any answering affidavit in response to the pending application. This position is necessitated by your client's status as a *peregrinus* and the outstanding security as formally requested.
3. We draw your attention to High Court Rule 59(4), which provides that if a party from whom security for costs is required fails or refuses to furnish such security within ten (10) days of the demand, the party entitled to security may apply to the managing judge, on notice, for an order that security be given and that the proceedings be stayed until compliance. In line with this rule (read together with Rule 59(5)), the managing judge is empowered to stay or even dismiss the proceedings, or strike out pleadings, should the required security not be provided within the time prescribed or fixed by the Court.
4. In light of the fact that this is an urgent application, we cannot afford your client ten (10) days as per the normal rule, and security was requested by close of business yesterday.
5. Accordingly, in the absence of your client furnishing security for costs as demanded, we hold instructions to proceed with an application to the Honourable Judge Sibeya under Rule 59(4)

Directors: Jurie Badenhorst BComm LLB LLM (Stell); Peter Johns BCom LLB (RAU); Christa de Wet BCom Law LLB (UOFS); Karin Klazen BA LLB (UCT); Mia Kellerman LLB (NWU); Jenny Vermeulen LLB LLM (UOFS); Rauna Ndilula BCom LLB (UP)

Ellis Shilengudwa Incorporated ("ESI") is a company registered in Namibia (registration number 2011/0099), which provides services from its place of business at 1st Floor, the Steps Building, c/o Grove & Chasie Street, Kleine Kuppe, PO Box 3300, Windhoek, Namibia.

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for an order compelling your client to furnish the security and staying all further proceedings in this matter until such order is complied with.

Regards

Jenny Vermeulen
Director

T: +264 61 24 2224
[jenny.vermeulen]@esi.dlapiperafrica.com

Ellis Shilengudwa Incorporated

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